management and the production of images. Judges, like the rest of us, are as likely to be swayed by these images and processed bodies of information in the media, and we need to be sharply aware at least of the fact that the management and processing of information is a key element in the realpolitik of ‘terrorism and counter-terrorism’ before we jump to any conclusions about apportioning guilt and innocence. My hunch is that the critical media literacy of the highest judiciary of the Republic of India is not so immaculate at the present as to render it immune to prejudice. The role played by the production of moving images, in film and video, in cinema and on television is particularly pertinent here, and I will attend to this in some greater detail later in this essay.

As of now, barring a presidential pardon, or the unlikely re-opening of the case, Afzal will hang. One hopes, for all our sakes, that it is otherwise, and that the circumstances that led to the alleged ‘terrorist’ attack on the parliament of what is sometimes loosely called the ‘largest democracy in the world’, to the passing of the most draconian preventive detention law by the legislature of the same ‘largest democracy’ (the now thankfully repealed POTA), and the situation of near war that lasted for more than a year between two nuclear weapons states who are also neighbours, will one day become available in the public domain. Until then, the delicate combination of secrecy and hyperbole, of understatement and exaggeration, of straight lies and half-cooked truths, of skulduggery and sentimentality, will continue to taint the history of communication practices in our republic of forgotten truths and remembered illusions, where (as elsewhere) the ‘media’, the ‘television and film industries’ and the ‘intelligence community’ dance an elegant tango in which it sometimes becomes difficult to discern who leads whom on the dance floor.

This text is only a call for a sustained meditation on this condition. And an attempt to account for and ask some questions about the overproduction of images and the aporiae within them that surround the representations of what is called ‘terrorism’, the events of 13 December, and the trials that followed. I do not pretend to give a comprehensive account of what happened, because I do not possess the necessary critical forensic-legal apparatus by way of training, nor am I an expert media ‘analyst’. I am a media practitioner, and I write this from the standpoint of someone who practises media and who observes what others practise. I do hope, however, that reading this might prompt those who have the necessary legal–forensic apparatus, or who may